

26SMCV04177 26SMCV04177

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-17

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Case Number: 26SMCV04177 Hearing Date: September 17, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

STORY ARC, LLC,

Plaintiff,

v.

SPACE CREATED INC., et al.,

Defendants.

Case No.: 26SMCV04177

Hearing Date: September 18, 2026

[TENTATIVE] order RE:

PLAINTIFF's application for RIGHT

TO ATTACH ORDER AND WRIT OF

ATTACHMENT

BACKGROUND

This is a breach of contract case. Plaintiff Story Arc, LLC helps clients with their corporate events. Leland Jensen owns all membership interests in Plaintiff.

Plaintiff entered into a written agreement with Defendant Space Created Inc. ("SCI") whereby Plaintiff would provide services to SCI's clients for a fee (the Agreement). Defendant Mo Saber is the President of SCI.

As compensation under the SA Services Agreement, SCI and Plaintiff agreed upon a production fee of five percent (5%) of the total cost to the client as reflected in the statements of work (SOW) or amended statements of work ("Amended SOW") that SCI entered into with its clients.

Between June 2022 and December 2025, Plaintiff submitted quarterly invoices to SCI, which averaged about \$70,000 per quarter. On each occasion when Plaintiff submitted an invoice, SCI paid in full soon after receipt.

However, SCI has refused to pay Plaintiff's last Q1 2026 invoice of \$62,500. Plaintiff alleges that SCI failed to do so because Plaintiff would not extend a loan to its President, Mr. Saber.

This hearing is on Plaintiff's application for writ of attachment against SCI. Plaintiff argues that its breach of contract claim is one upon which attachment may be issued, and it is likely to prevail on the claim.

In opposition, Defendants argue that Plaintiff is a suspended entity based on the Secretary of State website, and as such, it cannot prosecute its action against Defendant, including filing a writ of attachment.

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of (1) a Certificate of Status issued by the California Secretary of State for Story Arc LLC, Entity No. 201904210425, dated September 9, 2026, reflecting the Plaintiff's status as "Suspended - FTB"; (2) : Entity Status Letter issued by the California Franchise Tax Board for Story Arc LLC, Entity ID 201904210425, dated September 9, 2026, reflecting that the Plaintiff is not in good standing with the Franchise Tax Board; and (3) the business entity record for Story Arc LLC from the California Secretary of State's bizfile Online website, printed September 7, 2026, reflecting that Plaintiff has been suspended by the Franchise Tax Board since February 1, 2022.

The Court grants the request pursuant to Evid. Code section 452 as these documents are records of official acts of the executive department of the State of California. (Evid. Code, § 452, subd. (c).) The Court also grants the request pursuant to Evid. Code section 453 as the Court must take judicial notice of any matter specified in section 452, when a party gives the opposing party sufficient notice of the request and provides enough information to the Court to take judicial notice of the matter, including providing official documents or other verifiable sources. Here, Plaintiff has been given sufficient notice via Defendants' filing and service of the request for judicial notice, and the Court has been furnished with sufficient information to enable it to take judicial notice of the Secretary of State documents. (Evid. Code, § 453.)

DISCUSSION

A suspended corporation loses all "corporate powers, rights, and privileges." (Rev. & Tax. Code, § 23301.) One of those rights and privileges is the ability to bring a lawsuit. (Center for Self-Improvement & Community Development v. Lennar Corp. (2009) 173 Cal.App.4th 1543, 1552 ("a suspended corporation cannot sell, transfer or exchange real property in California, and contracts entered into during the time of suspension are voidable ... through legal action. [Citation.] ... Nor, during the period of suspension, may the corporation prosecute or defend an action, seek a writ of mandate, appeal from an adverse

judgment, or renew a judgment obtained before suspension”).

The legislative policy behind section 23301 is “to prohibit the delinquent corporation from enjoying the ordinary privileges of a going concern, in order that some pressure will be brought to bear to force the payment of taxes.” (Peacock Hill Ass’n. v. Peacock Lagoon Construction Co. (1972) 8 Cal.3d 369, 371, quoting Boyle v. Lakeview Creamery Co. (1937) 9 Cal.2d 16, 19.)

An attachment is “a provisional remedy wholly dependent on the main cause of action.” (Peacock, 8 Cal.3d at 373.) Thus, a plaintiff who has no capacity to prosecute the main cause of action also lacks the ability to pursue a provisional remedy related to that claim. (Id.; City of San Diego v. San Diegans for Open Government (2016) 3 Cal.App.5th 568, 577.)

Accordingly, the Court denies Plaintiff’s application for right to attach order and for writ of attachment.

CONCLUSION AND ORDER

Based on the foregoing, the Court DENIES the application for writ of attachment. The Court sets order to show cause (“OSC”) hearing as to why Plaintiff’s complaint should not be dismissed given its suspended status. The OSC hearing is scheduled for February 1, 2027 at 8:30 a.m.

DATED: September 18, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court